

Office of the Sangguniang Panlungsod

Ordinance approved by the Sangguniang Panlungsod of the City of Cauayan, Isabela in its Regular Session held on April 20, 2021 at the SP Session Hall.

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ORDINANCE NO. 2021 – 395

AN ORDINANCE ESTABLISHING THE HEALTH CARE PROGRAM OF CAUAYAN CITY, AND APPROPRIATING FUNDS THEREFOR, AND FOR OTHER PURPOSES.

(Sponsored by: HON. BAGNOS R. MAXIMO, JR.

Co-Sponsor: HON. CYNTHIA Q. UY-BALAYAN)

WHEREAS, Section 15, Article II, of the 1987 Philippine Constitution states that, "The State shall protect and promote the right to health of the people and instill health consciousness among them";

WHEREAS, the Philippine Constitution likewise provides that the State shall adopt an integrated and comprehensive approach to health development which shall endeavor to make essential goods, health and other social services available to all the people at affordable cost;

WHEREAS, pursuant to the Republic Act No. 7160, otherwise known as the "Local Government Code of 1991", every local government until shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate or incidental for its efficient and effective governance and those which are essential to the promotion of the general welfare, ensuring and supporting, among other things, the promotion of health and safety;

WHEREAS, the same Code provides that the Sangguniang Panlungsod shall enact ordinances, approve resolutions and appropriate funds for the general welfare of the city and its inhabitants;

WHEREAS, City Government of Cauayan is committed to the delivery of efficient and quality basic services and facilities, as well as the promotion of the general welfare of its constituents;

WHEREAS, the low-income households and disadvantaged sectors are most vulnerable to risks, such as illness, physical injury, accident, death, and loss of property. In most cases, they are not financially prepared to cope with the risks since they have inadequate or, at worst, have no access to risk protection services;

WHEREAS, driven by the commitment to promote health and maintenance, the City Government of Cauayan intends to extend social protection to low-income households and disadvantaged sectors by establishing a health care program that meets the needs of the disadvantaged for risk protection and relief against distress or misfortune, a powerful tool that gives the disadvantaged sectors access to social protection which include provision of health and medical care, and accident and disability benefits.

NOW THEREFORE, BE IT ORDAINED BY THE SANGGUNIAN PANLUNGSOD OF THE CITY OF CAUAYAN, ISABELA, IN SESSION DULY ASSEMBLED:

SECTION 1. TITLE. This Ordinance shall be known as the "**HEALTH CARE PROGRAM ORDINANCE OF THE CITY OF CAUAYAN, ISABELA.**"

SECTION 2. DECLARATION OF POLICY. It is declared policy of the City of Cauayan to recognize the right of every Cauayeno to health and to promote their general welfare.

SECTION 3. OBJECTIVE. It is the Objective of this Ordinance to provide all bona fide households of the City of Cauayan health care program that extends provision of health and medical care, and accident and disability benefits to their members.

SECTION 4. SALIENT FEATURES. For purposes of this Ordinance, the following contingencies shall be provided with corresponding benefits:

4.1 Accidental Death – provides indemnity for loss of life resulting from accidents.

4.2 Accidental Disablement or Dismemberment- provides monetary benefit for accidental bodily injury resulting in loss of any of the limb (hand, foot and finger), or sight or hearing. Table of benefits is provided in the succeeding provisions.

4.3 Medical Reimbursement due to accident – provides financial cash assistance in case hospitalized due to sickness/illness

4.4 Fire and/or lightning - provides financial cash assistance if the principal insured suffer loss or damage to property due to fire and/or lightning.

SECTION 5. BENEFICIARIES OF THE PROGRAM. The heads of the family as recorded in the City of Cauayan Relief Assistance Monitoring System (RAMS) shall be enrolled as beneficiaries in the program. Their dependents shall also be included in the coverage.

SECTION 6. BENEFITS AVAILABLE. The benefits granted under this health care program shall be the family health packages including health and medical care, and accident and disability benefits as stipulated under the terms and conditions of the contract with the health care insurance provider.

SECTION 7. EXCLUSIONS. The benefits granted under this program shall not cover incidents that are excluded in the contract with the health care insurance provider.

SECTION 8. PARTICIPATION OF THE BENEFICIARIES. To avail of and claim the health and medical care, and accident and disability benefits covered by this Program, the beneficiaries shall provide the City Government the documentary requirements needed to process the claims.

SECTION 9. APPROPRIATION. An initial amount of Fifteen Million Pesos (P 15,000,000.00) shall be appropriated for the implementation of the program for the year 2021. The budgetary allocation may be changed thereafter from year to year subject to the existing rules and regulation pertinent thereto.

SECTION 10. PROCUREMENT OF SERVICES OF HEALTH INSURANCE COMPANY. Upon approval of this Ordinance, the City Bids and Awards Committee shall convene to prepare the necessary guidelines in the conduct of pre-qualification and public bidding to find a reputable or credible Health Care Insurance Company who will provide the health and medical care, and accident and disability benefits to the beneficiaries of this Program.

SECTION 11. IMPLEMENTING RULES AND REGULATIONS. The Sangguniang Panlungsod Committee on Health and Sanitation shall formulate the Implementing Rules and Regulations within 30 days after approval of this Ordinance.

SECTION 12. SEPARABILITY CLAUSE. If, for any provision of this Ordinance shall be held unconstitutional or invalid, other parts or provisions hereof, which are not affected thereby, shall continue to be in full force and effect.

SECTION 13. REPEALING CLAUSE. All ordinances, rules or regulations in conflict with the provisions of this Ordinance are hereby repealed; Provided, that the rights already vested under those ordinances, rules, or regulations shall not be impaired.

SECTION 14. EFFECTIVITY CLAUSE. This Ordinance shall take effect upon its approval and posting or publication.

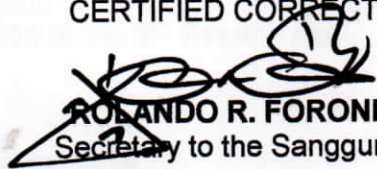
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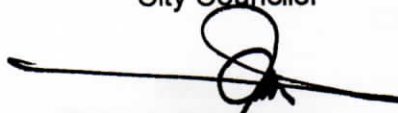
RESOLVED, FINALLY, to furnish copy of this Ordinance to the Hon. Bernard Faustino M. Dy, City Mayor; Atty. Emmanuel D. Marquez, City Legal Officer; Atty. Crisanto M. Mora, City General Services Officer; Atty. Reina Consorcia M. Santos, City Information Officer; Mr. Carlito B. Andres, City Treasurer; Mr. Virgilio L. Trinidad, Jr. City Budget Officer, Ms. Divina B. Ramirez,

City Accountant, Cauayan City Bids and Awards Committee, all of the City of Cauayan, Isabela, and the Sangguniang Panlalawigan, for their information, guidance and appropriate action.

ADOPTED AND APPROVED: April 20, 2021.

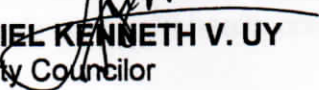
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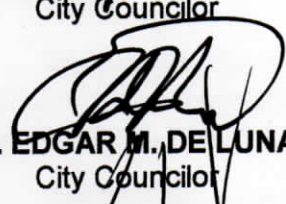

ROLANDO R. FORONDA
Secretary to the Sanggunian

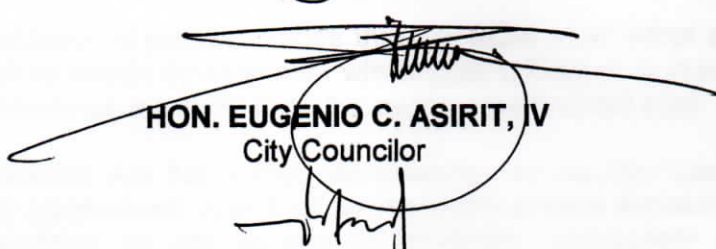

HON. CYNTHIA Q. UY-BALAYAN
City Councilor

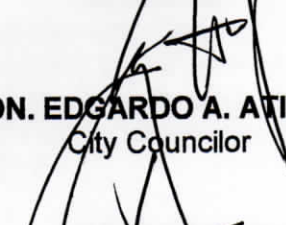

HON. RUFINO C. ARCEGA
City Councilor


HON. GARRY G. GALUTERA
City Councilor


HON. ARIEL KENNETH V. UY
City Councilor

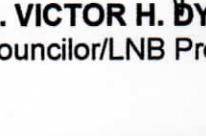

HON. EDGAR M. DE LUNA
City Councilor

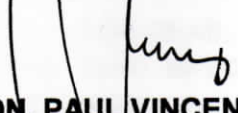

HON. EUGENIO C. ASIRIT, IV
City Councilor


HON. EDGARDO A. ATIENZA, JR.
City Councilor

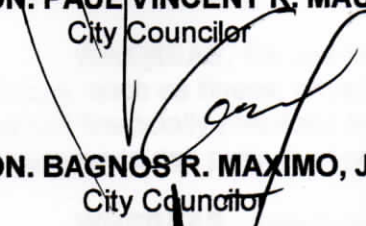

HON. VICTOR H. DY, JR.
City Councilor/LNB President

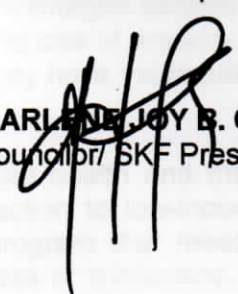

HON. TELESFORO R. MALLILLIN
City Councilor


HON. CAESAR S. DY, JR.
City Councilor/ Sectoral Representative

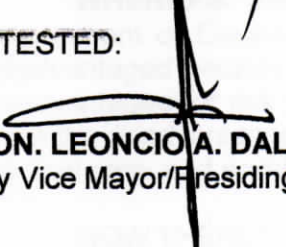

HON. PAUL VINCENT R. MAURICIO
City Councilor


HON. FAUSTINO M. GAPASIN, JR.
City Councilor/Sectoral Representative


HON. BAGNOS R. MAXIMO, JR.
City Councilor


HON. CHARLENE JOY B. QUINTOS
City Councilor/ SKF President

ATTESTED:


HON. LEONCIO A. DALIN, JR.
City Vice Mayor/Presiding Officer

APPROVED:


HON. BERNARD FAUSTINO M. DY
City Mayor

April 30, 2021
(Date)